Arizona's Rule of Law Day: Why It Matters, and Why It Starts With Us

"If we don't protect the Rule of Law, we cannot expect the law to protect us."

On February 12, 2026, something quietly profound will happen in courthouses across Arizona. From Flagstaff to Yuma, lawyers and judges will gather not to argue cases or issue rulings, but to reaffirm a shared civic commitment: the Rule of Law. In Tucson, the State Bar of Arizona and the Arizona Supreme Court will host a special ceremony at the Pima County Superior Court from 4:00 to 5:00 p.m., featuring Chief Justice Ann Timmer of the Arizona Supreme Court, Presiding Superior Court Judge Danelle Liwski, and University of Arizona James E. Rogers College of Law Dean Jason Kreag.

The date itself is rich with meaning. February 12 marks Arizona's Rule of Law Day. It also coincides with the 250th birthday of the Declaration of Independence and the birthday of Abraham Lincoln—a president who understood, perhaps better than any other, that democracy survives only when laws, not passions or power, rule the day.

The phrase "Rule of Law" is often invoked, sometimes casually, but its meaning is neither vague nor abstract. The World Justice Project defines the Rule of Law through four core principles: accountability (that government officials and private actors alike are subject to the law); just law (that laws are clear, publicized, stable, and protect fundamental rights); open government (that laws are enacted and enforced transparently); and accessible, impartial justice (that justice is delivered by competent, ethical, and independent decision-makers). In short, no one is above the law, the rules are known in advance, and disputes are resolved fairly.

It is vitally important because **if we don't protect the Rule of Law, we cannot expect the law to protect us.**

This framework is not a luxury of stable societies; it is the reason they remain stable. The Rule of Law is what transforms disagreement into dialogue, conflict into process, and power into responsibility. Without it, rights become aspirations rather than guarantees, and democracy becomes a slogan rather than a system.

Lawyers and judges occupy a unique position in this ecosystem. Lawyers swear an oath not to clients alone, but to the Constitution and the laws of Arizona and the United States. Judges, in turn, are entrusted to apply those laws impartially, without fear or favor. This shared professional obligation makes lawyers especially well-suited to promote, defend, and protect the Rule of Law—not as a partisan cause, but as a civic one.

That is why, during the February 12 ceremony, lawyers across the state will retake their oath. It is a symbolic act, but symbols matter. They remind us that the Rule of Law is not self-executing. It depends on people—judges who decide cases with integrity, lawyers who advocate ethically, and citizens who respect lawful outcomes even when they disagree.

Arizona's Rule of Law Day is not only for lawyers. It is an invitation to all Arizonans to recommit to the idea that our democracy works best when we insist on fairness, accountability, and equal justice. Under the leadership of our courts and our legal profession—and with the engagement of an informed and principled public—we can ensure that the Rule of Law remains not just an ideal we celebrate once a year, but a practice we defend every day.

Ted Schmidt is managing partner of the Tucson law firm Schmidt, Sethi & Akmajian and immediate past president of the State Bar of Arizona

- **Why the Rule of Law is eternally important, especially in this day in age**

The first thing we do, let's kill all the lawyers."

Hitler

Franco

Stalin

— William Shakespeare, Henry VI, Part 2, Act IV, Scene 2.

It ensures that **no person is above the law and no person is beneath its protection**. That principle is the backbone of constitutional democracy.

It **replaces power with principle**. Disputes are resolved by neutral courts applying known rules—not by force, status, wealth, or politics.

It **protects individual liberty**. Property rights, free speech, due process, and equal protection exist only where law restrains arbitrary authority.

It creates **stability and predictability**. Families, businesses, and communities can plan, invest, and thrive when rules are transparent and consistently applied.

It **preserves peaceful self-government**. In polarized times, the Rule of Law is what allows disagreement without disorder.

It is fragile. History shows that democracies erode not all at once, but gradually—when respect for institutions and lawful process weakens.

• **Why Arizona needed a Rule of Law Day—and its potential impact**

Civic literacy is not self-executing. Constitutional principles must be taught, discussed, and renewed by each generation.

This date is symbolic and instructive. Lincoln's birthday, Arizona statehood, and the 250th year of the Declaration remind us that liberty and lawful governance are inseparable.

It reinforces public trust. Bringing courts, lawyers, and communities together demystifies the justice system and strengthens confidence in it.

It **highlights the profession's responsibility**. Lawyers and judges are stewards of process, fairness, and institutional integrity.

It **invites civic participation**. An informed public is more likely to vote, serve on juries, engage respectfully, and hold institutions accountable.

• What challenges can be addressed with greater understanding of the Rule of Law?

Polarization and distrust. Understanding how courts function reduces suspicion and reinforces legitimacy—even when outcomes are unpopular.

Misinformation. Clear knowledge of constitutional structure combats false narratives about governmental authority and judicial power.

Cynicism about institutions. Civic education reminds citizens that systems are designed to constrain abuse and provide remedies.

Erosion of civil discourse. When people understand lawful avenues for change, they are less likely to resort to hostility or disengagement.

Barriers to justice. Greater awareness encourages reform efforts focused on access, efficiency, and fairness.

Complacency. The Rule of Law survives only if citizens and lawyers actively defend it.

Today we stand at a rare intersection of history.

We honor Abraham Lincoln, who insisted that ours is a nation “of the people, by the people, for the people”—but governed by law. We approach Arizona’s statehood anniversary, a reminder that when this state entered the Union, it bound itself to a constitutional structure where power answers to principle. And we mark the 250th year of the Declaration of Independence, which did not merely proclaim freedom—it declared that legitimate government rests on laws, not on the will of any one person.

The Rule of Law is what turns ideals into institutions. It is what allows a free people to disagree without descending into disorder. It is what protects the unpopular, restrains the powerful, and gives every citizen a voice in a system larger than any single individual.

But the Rule of Law does not sustain itself. It lives only if we teach it, defend it, practice it, and demand it.

In Arizona, we recommit ourselves today to that work—so that 250 years from now, those who follow us will say that in our time, we kept faith with the promise of lawful liberty.

President's Message—The Rule of Law is Under Attack—Why We Should Care?

Ted Schmidt

In 2006 the American Bar Association and 21 partners created the World Justice Project - an "international civil society organization working to advance the rule of law around the world". The WJP Rule of Law Index® evaluates 142 countries and jurisdictions around the world adhere to the rule of law, which it defines as a durable system of laws, institutions, norms, and community commitment that delivers four universal principals: accountability, just law, open government, and accessible and impartial justice. For the sixth year in a row, the rule of law has declined in most countries. The United States ranks 26th out of 142 world countries. The top 4 are the Scandinavian countries. https://worldjusticeproject.org/rule-of-law-index/global/2023

China's suppression of political dissent and human rights abuses, Venezuela's President Maduro's disqualification of opposition candidates and manipulation of the ballot box, and Russia's assassination of dissidents are just a handful of examples of the demise of the rule of law around the world. Wherever autocracies exist the rule of law suffers. This is not surprising. "Power tends to corrupt and absolute power corrupts absolutely" Lord Acton (1887).

It is undeniable that the Rule of Law is under attack around the world and, yes, right here in the good ol' USA. Albeit for different reasons, Republicans, Democrats, liberals, conservatives and moderates all seem to agree, the Rule of Law is taking hits.

So why should we care and what can we do about it?

As lawyers we are in the best position to advocate and work towards the preservation of the rule of law. Members of our communities look to us to inform, educate and advise regarding all aspects of the law.

Clearly the underlying principles of fairness, equality, and justice, and their importance to our legal system must be the cornerstones of our profession. In our oath we swear to "uphold the U.S. and Arizona Constitutions." I submit that as lawyers we in fact have a moral obligation to speak up, to educate, and lead our communities in fighting off these attacks and strengthening this hallowed principle.

Even those who might choose to take a cynical view on the subject must admit that their very livelihood is at stake here. Without the rule of law, how do we advise our clients what to do and not do, how do we predict outcomes and how do we effectively represent them if we cannot depend on the sanctity, consistency, and fairness of the law?

When Hitler invaded Europe, and Stalin and Mao Zedong overthrew the governments in Russia and China, the first in those societies to come under attack and lose relevancy were those most able to protect citizens from human rights abuses, genocide, and political persecution—lawyers and judges.

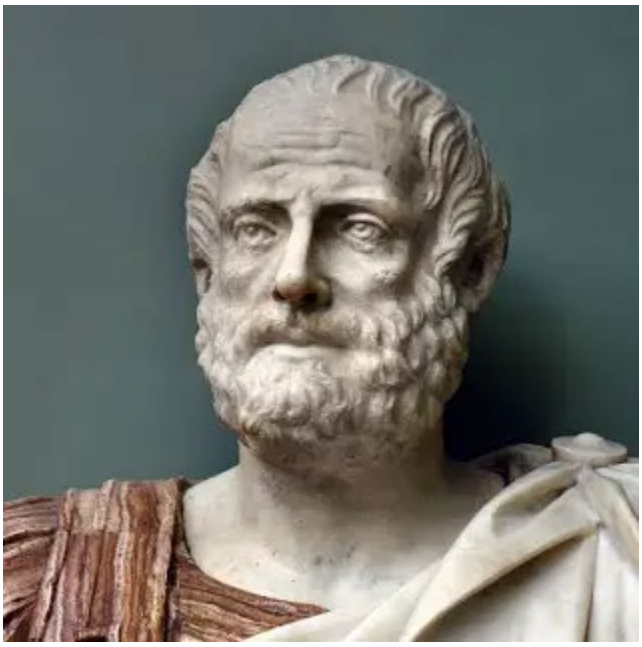
"The only thing necessary for the triumph of evil is for good men to do nothing." Edmund Burke.

So, whether motivated by self-interest or loyalty to the idea that we have been blessed to hold a particularly weighty position in society, by virtue of our education and experience in the law, I would urge that we all move to take a leadership role in protecting the Rule of Law.

Exactly what we mean by "the rule of law," why it's important and how we as vanguards can protect and promote it will be the subject of my future messages. For now, I only hope I can inspire you to care deeply about the principles of justice, equality and fairness, and instill in you a strong desire to act, speak up and lead in the effort to protect and strengthen these foundational principles to our very way of life.

President’s Message—Defining the Rule of Law

If we as lawyers and leaders in our communities are to defend and advance the rule of law it is important as a first step that we fully understand what this evolving principle central to our democracy truly means.



As early as 400 BC it was recognized in Ancient Greece that the rule of law was a cornerstone to a functioning democracy. Aristotle put it simply, "It is more proper that law should govern than any one of the citizens: upon the same principle, if it is advantageous to place the supreme power in some particular persons, they should be appointed to be only guardians, and the servants of the laws."

In the 1600s John Locke, an English philosopher who played a key role in the development of western democracy emphasized the importance of the rule of law to that institution. "Wherever Law ends, tyranny begins."

Our forefathers relied heavily upon this principal both in the Declaration of Independence and Constitution. Thomas Jefferson said, "The most sacred of the duties of a government [is] to do equal and impartial justice to all its citizens."

And of course, when the rule of law met its most stringent test in America, President Abraham Lincoln exclaimed, ""Let every American, every lover of liberty, every well-wisher to his posterity, swear by the blood of the Revolution never to violate in the least particular the laws of the country, and never to tolerate their violation by others."

In its most basic form, the rule of law is understood to mean that we are governed by laws, not the whims of our leaders and that those laws are fair, just and applied equally to all. That said, the concept is a dynamic and evolving standard

On April 26, 2024, the International Academy of Trial Lawyers published what I believe to be the most comprehensive definition of the rule of law. This definition I believe is one we should all be familiar with and use as a guide as we repel attacks on this foundation of our democracy and profession.

> The International Academy of Trial Lawyers steadfastly advocates for, and defends, the Rule of Law. In doing so, we refer to the principle that all persons, institutions, and entities (including corporations and governments in any form):
>
> • are subject to law;
>
> • have access to the protections of and rights established through the law regardless of economic means; and
>
> • may have their or its actions challenged in, and may be held accountable before, a court of law.
>
> This system requires that the legal profession operates independently and without interference from others, ensuring the greatest possible access to legal protections and remedies.
>
> Further, we hold that to conform to the Rule of Law, laws must be:
>
> • clearly defined, easily accessible and legally certain;
>
> • established through a transparent process that is open to debate and discussion;
>
> • prospective in nature;
>
> • consistent with internationally recognized human rights principles;
>
> • enforceable through a court of law where disputes are timely adjudicated by an independent and impartial judiciary, and may include decision-making by a group of impartial citizens, on the basis of evidence applied to established law, free from case-related bias or ethical conflicts; and
>
> • impartially enforced by the state.

I hope you, as I, will embrace this definition and help bring members in your community and practice to also understand it and appreciate its importance. The rule of law is under attack in our country and as such our very democracy is at risk. In my January message I will posit some ideas as to how we bring the temperature down, bring civility back into the room and promote respect and understanding among divergent views. If we can do that, I believe the rule of law will indeed endure.

Finally, I recommend to you the World Justice Project, an effort to promote the rule of law throughout the world. Here you will find a wealth of information regarding how the rule of law is fairing around the world and what we can do as vanguards to continue its advancement.

https://worldjusticeproject.org/take-action-defend-rule-law

Call to Action—How You Can Champion The Rule of Law

Having established what the rule of law is and why it is existential to our way of life and our profession, and having learned how to engage folks in constructive dialogue, I invite you to consider how we, each of us, can find our way to promote and advance it.

I challenge you to peruse this list and grab one, two, maybe three of these ideas and run with them. Let me know how it goes.

Start at the Dinner Table

With civics no longer receiving the amount of attention it should in our schools, what better way to practice your elevator speech on the rule of law than at home, at the dinner table with the family. Throw it out there. What is the rule of law and why it's important. Then ask others to identify ways it is under attack or being advanced. Invite participation in the discussion. How do each of you see the rule of law affecting your lives and community?

Take it to the Office

Engage the attorneys and staff in your office. Make it a lunch topic. Set the table then lead a robust discussion on the challenges to the rule of law and how each of you can help promote it.

Take it to the Streets

Volunteer at your church, community organization, clubs and sports group to give a talk on the subject. Rather than a lecture, encourage constructive dialogue. Set the stage by emphasizing your goal that folks listen, understand, and seek common ground.

Take it to the Schools

There aren't many places you can find a more attentive and engaged audience than in our schools. Learning important civics lessons from a local attorney is a big deal to middle school kids. Fortunately, the Arizona State Bar Foundation provides us with the tools to take this message to our children. The Foundation has a variety of subjects where volunteers like yourself can go into your local school and promote the rule of law in a number of creative ways. And all the materials, talking points and guidance you would need are already there. No need to reinvent the wheel. Number one on your list should be to go to this website and volunteer to help with one of the cool programs below. https://www.azbf.org/get-involved/volunteer

The Foundation programs include:

Connecting with Classrooms—Constitution Week

Grab a premade lesson plan, activities and educational gifts and go to your local K-12 and spend an hour or so teaching the kids about the Constitution.

Arizona High School Mediation Tournament

Serve as a judge (we have all the guidelines for you) as high school students trained in the mediation process compete showing off their mediation skills.

We the People Citizen and the Constitution

Serve as a judge of this mock congressional hearing which brings teams of students from around the state to present statements and answer questions from a panel of community representatives.

Mock Trial High School Competition

Serve as a judge of high school teams from throughout our community who present all aspects of a trial from opening statement to closing argument. Judge their skills and preside over their trials.

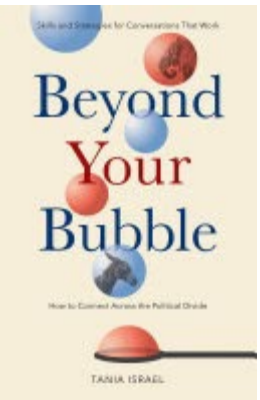
Project Citizen Showcase

Students research a problem in their community and attempt to resolve it through public policy. You serve as a judge of their portfolio and their live presentation.

Finally, yet perhaps most importantly, The State Bar of Arizona has a number of important committees, working groups and task forces each focused in its own way on improving our justice system. In recent years, the number of folks volunteering to serve in these important groups is down. Step up and make a difference in the area that best meets your interest. Volunteer to serve on one of these committees, commissions, advisory groups, or task forces https://azbar.org/for-legal-professionals/communities/ or committees – https://azbar.org/for-legal-professionals/communities/committees/appointments-committee/

Each of us took an oath when we became licensed attorneys in Arizona. "I do solemnly swear (or affirm) that I will support the constitution and laws of the United States and the State of Arizona." I submit at this particular moment in time and place, this promise compels us all to become champions of the rule of law and do what we can to promote and advance it.

Will you accept the challenge?

You Can Hear but Did you Listen? —Facilitating Dialogue 

Has there ever been a more divisive time in our society since the Civil War? We have so much to be divisive about. Democrat-Republican, climate change, abortion, gun rights, BLM, police reform, gender identity. . . Where to start? And these divides are only driven deeper by social media and news sources focused to political leanings.

If we as lawyers are going to fulfill our oath of office and protect the Constitution, we need to know how to face this divisiveness and lead constructive, meaningful dialogue among those of different points of view.

There has been much studied and written on this subject. I commend "Beyond Your Bubble—How to Connect Across the Political Divide," by Tania Israel, and Time Magazine "9 Ways to Respond to Political Information" by Angela Haupt (October 9,2004). Tania is a professor at the University of California at Santa Barbara with a doctorate in counseling. This is her specialty. Angela is a health and wellness editor who interviewed a number of experts for her piece.

As a starting point, Israel tell us one of the best ways to turning down the temperature, while bringing people of different points of view together especially at a meeting or event is to establish ground rules. Begin the discussion by asking all to treat the discussion as a dialogue, a civil and open discussion where we hear to each other, honestly listen and understand what is being said, while avoiding a judgmental response.

Approach the dialogue with the understanding it is not our goal to convince those who disagree to adopt our point of view. We are not in dialogue to persuade. We are in dialogue to truly listen, understand and respect each other's point of view. If we can understand why and where we are each coming from, maybe different points of view make more sense. Maybe we even find some common ground.

The main point, is we approach the dialogue with the mindset that we are not engaging in this conversation to "win or lose." Rather we each want to truly listen and understand. Not to be thinking how to respond while listening but keeping the mind open to just listening and understanding. Help each person in the dialogue to feel safe and understood. Not judged. Do not argue or confront. Manage emotions always bringing your focus back to the fact you are the lawyer, the facilitator, the person leading this dialogue.

Frequently reflect on what has been said. Reference personal experiences. Ask open-ended questions. If persuade you must, reference the other person's moral priorities. The best opportunity to influence a persons' opinion is to connect it to their moral priorities.

In situations where we are confronted with what we know to be misinformation, Haupt recommends we not talk down but instead ask sincerely "Do you mind telling me where you heard that?" The source of misinformation can be very helpful in the dialogue. A response by you "I noticed that different media sources are focusing on different information. Mine seem to be focusing on ____. What draws you to your sources?"

Asking "what worries ou the most about that" often can lead to some common ground in the dialogue.

Where the misinformation becomes dehumanizing" remind those in the discussion that "these stories involve real people with real lives.'

When the misinformation is particularly "divisive or inflammatory" it often helps to ask, "Before we get too deep, can we take a step back and think about who benefits from this narrative?" Hopefully leading the dialogue in this direction will promote a more critical view of the motive behind the dissemination of the misinformation.

As lawyers, sworn to support the constitution and advance the rule of law, I urge you to think of yourself as that individual uniquely suited in your family, church, and community to break the ice, bridge the divisiveness and facilitate folks engaging in dialogue again particularly as we make our best efforts to defend and promote the Rule of Law.

I hope you find these ideas beneficial in that effort.

Bar Acts to Protect & Promote the Rule of Law

The Rule of Law ~~rule of law~~ is foundational to a fair and just society, ensuring that all – regardless of wealth, power, or influence – is subject to the same set of laws. It protects individual rights and freedoms and provides a framework for peaceful, predictable dispute resolution. It fosters societal stability, accountability and transparency. The rule of law safeguards equal protection, social harmony, and economic growth. When it falters, the consequences can be profound and far reaching.

With that in mind, ~~i~~n August 2024 I appointed ~~formed~~ a Task Force "to explore meaningful and actionable ways that the State Bar and its members can protect and promote the Rule of Law while adhering to *Keller v. the State Bar of California*, 110 Sup. Ct. 2228 (1990). ~~The task force was chaired by f~~Former Bar President *Michael Murphy* served as Chair of the Task Force, which included ~~and included~~:

Chief Justice Ann A. Scott Timmer	*The Honorable Ron Barber*
Michael "Mick" Rusing	*Daisy Jenkins*
Hon. David B. Gass	*(Ret) Chief Justice Tom Zlaket*
Dean Marc Miller (UofA)	*Dean Stacy Leeds (ASU)*
Joseph A. Kanefield	*Jessica Sanchez*
(Ret) Judge Philip E. Toci	

The task force met twice a month until publishing its report in December 2024~~it authored its report on December 13, 2024~~. * The report ~~noted~~noted the importance of this work citing the World Justice Project finding that 96% of Democrats and 96% of Republicans agree the "Rule of Law is crucial to the future of the country. The importance of the Rule of Law is not a political issue.

The task force made the following recommendations to the Board of Governors:

This Task Force encourages the Board of Governors to make adherence to, respect for and understanding of the importance of the Rule of Law priority goals for Arizona lawyers.

Why?

A. Lawyers, because of their education and experience, are in a unique position to champion this endeavor.

B. It is part of every lawyer's Oath of Admission and our ethical duty and

obligation. Every lawyer in Arizona has an absolute ethical obligation "to support the Constitution and the laws of the United States and the State of Arizona". This is not an aspirational goal. It is a directive contained in both our Oath of Admission and in the ~~dictates~~ plan language of Rule 41, Ariz. R. Sup. Ct.

Commented [MOU1]: Pick caps or no caps so it's standardized.

Commented [MOU2]: You should pick cap or no cap. I would do cap.
Pick capitalized or not capitalized

Formatted: Font: Italic

Formatted: Font: Italic

C. The Rule of Law is fundamental to the work that each of us does daily. We need a system that encourages adherence to the Law, respect for the independence of the judiciary and predictability in dealing with the complex

problems of society. Thus, lawyers working to promote this system are vital to improving the quality of legal services.

RECOMMENDATION #1: To accomplish this goal and firmly establish and advance the State Bar of Arizona's commitment to promoting the Rule of Law, the Task Force recommends the State Bar of Arizona Board of Governors file a rule petition with the Arizona Supreme Court seeking to amend Rule 32(a)(2), which sets forth the State Bar's mission, as follows:

The State Bar of Arizona exists to serve and protect the public

with respect to the provision of legal services and, access to

justice, **AND PROMOTING CONFIDENCE IN THE RULE**

OF LAW.

Recognizing that the key to enticing the public to embrace the importance of the Rule of Law is public education, the task force noted the Bar Foundation has many programs designed to provide our youth civic education and only needs lawyer volunteers to provide these programs to our kids. https://www.azbf.org/ . Similarly, the Sandra Day O'Connor Institute for American Democracy has many programs promoting democracy and civic education https://oconnorinstitute.org/

Likewise, the State Bar has a "'Speaker's Bureau,' which makes lawyers available for public speaking. This is a free service aimed at helping people learn about our legal system and addresses numerous topics, including the judicial system. It is respectfully submitted that Members of the Bar should be encouraged to take part in and support the work of these groups. The Task Force asks that the Board of Governors (or its designee) consider securing limited CLE credit for those lawyers who participate in the activities outlined above, much like what is currently given to lawyers who speak at seminars.

RECOMMENDATION #2: The Task Force recommends that the Board of Governors encourage efforts promoting civility within the profession and perhaps, again, consider formal CLE credit for those lawyers who present approved programs on the subject.

RECOMMENDATION ~~#$~~3: Lawyers need to be reminded that they are officers of the Court and, again, that every lawyer's day-to-day work depends on an honest, competent, and trusted judiciary. Lawyers are encouraged to make every effort to support the independence of our judiciary.

I am proud to say that on January 17, 2025, your ~~Bb~~oard of ~~Gg~~overnors voted to act upon these recommendations, and I have created a Working Group to shepherd their implementation. I invite and encourage all of our members to join the movement and do their part to protect and promote the Rule of Law.

*The complete report of the task force can be found at _____.